

M/S. Pooja Aata Chakki v. State of U.P.

Allahabad High Court · Division Bench · 28 May 2014 · Writ-C No. 30229 of 2014 · **Writ disposed; Clause 6.5 authority to decide the bill objection.**

HEADNOTE

A consumer challenging an electricity bill as incorrect in light of past payments and certificates must take the dispute to the competent authority under Clause 6.5 of the Electricity Supply Code, 2005. The writ was disposed of by directing that authority to decide the petitioner's already-filed objection in accordance with Clause 6.5, without examining the bill on merits.

FACTUAL SUMMARY

M/S Pooja Aata Chakki challenged Dakshinanchal Vidyut Vitran Nigam Ltd.'s electricity bill dated 2 May 2014 as incorrect in light of past payments and certificates issued by the licensee's officers at Etawah. The distribution company submitted that a billing dispute belongs before the Clause 6.5 authority, which would have the full connection records. The petitioner had already filed an application dated 8 May 2014 against the impugned bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-forum

HOLDING

Where a consumer assails an electricity bill as incorrect, the proper forum is the competent authority under Clause 6.5 of the Electricity Supply Code, 2005, which is better placed to decide because the entire connection record is available before it. The writ was disposed of directing that authority to decide the petitioner's existing objection dated 8 May 2014; the petitioner was to file a certified copy of the order with that objection within two weeks, after which the authority was to proceed in accordance with Clause 6.5. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer challenging an electricity bill as incorrect in light of past payments and certificates must take the dispute to the competent authority under Clause 6.5 of the Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL DATED 2.5.2014 WAS INCORRECT IN LIGHT OF PAST PAYMENTS AND CERTIFICATES

Left to the competent authority under Clause 6.5 ¶ 1